

I.

Request

1. The Office of the Minister of Justice requested the National Data Protection Commission (CNPD) to express its opinion on the Proposal for an Agreement between the Portuguese Republic and the Federative Republic of Brazil in the field of investigation and combating transnational organized crime and terrorism concerning the provisions on the protection of personal data.

2. The Request states that the proposed wording in the applicable provisions of Chapter V of Law No. 59/2019, of 08/08, thus safeguarding the issues.

3. The CNPD issues an opinion within the scope of its powers, as the national authority for the control of personal data processing, conferred by paragraph 1 of Article 43 and subparagraphs a) and c) of paragraph 1 of Article 44 of Law No. 59/2019, of August 8, which approves the rules regarding the processing of personal data for the purposes of prevention, detection, investigation, or repression of criminal offenses or enforcement of criminal sanctions, transposing Directive (EU) 2016/680 of the Parliament and of the Council, of April 27, 2016.

II.

Analysis

4. The proposed Cooperation Agreement under review aims to deepen the existing bilateral cooperation mechanisms in the field of investigation and combating transnational organized crime and terrorism (Article 1), with respect for the respective domestic law (Article 2), and consists, as outlined in Article 4, of different modalities of cooperation, such as: the exchange of information and data on various manifestations of transnational organized crime and terrorism (subparagraph a); operational and forensic information, location and identification of persons and objects, and assistance in the execution of police actions (subparagraph b); information about existing structures responsible for investigating and combating that type of crime (subparagraph c), among other areas of cooperation, namely, in the field of technical-professional training of officials and matters related to techniques for financing terrorist organizations.

5. This cooperation may, according to the provisions of paragraph 2 of Article 5 of the Agreement, include different modalities, such as the use of liaison officers and telematic communication means, as well as the use of special investigation techniques and the creation of joint investigation teams.

6. Paragraph 1 of Article 5 provides

7. The competent authorities for the implementation of the Agreement are, for the Portuguese Republic: the Judicial Police; and for the Federative Republic of Brazil: the Federal Police (Article 3).

8. Articles 9 and 10 of the Agreement refer to the matter of data protection and follow, in accordance with Law No. 59/2019, of

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imposes that the Parties ensure the confidentiality of information, documents, and personal data received, whether in writing or verbally, based on the provisions of the Agreement, International Law, and applicable domestic law (paragraph 1), and such confidential information, documents, and personal data received by the competent authorities of the Parties under this Agreement may not be transferred to third parties unless prior written consent has been obtained from the requested Party and provided that adequate legal guarantees regarding the protection of personal data are offered, in accordance with International Law and applicable domestic law.

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rights, freedoms, and guarantees of individuals, especially the right to the protection of such data (paragraph 1) and lists, in paragraph 2, the ways in which such processing should occur

(subparagraphs a) to f)), which correspond to the principles regarding the processing of personal data, as provided in Article 5 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (General Data Protection Regulation, hereinafter referred to as GDPR): Principles of lawfulness, purpose, adequacy and relevance, accuracy and data minimization, and that the data must be retained in a manner that allows for the identification of data subjects only for the period necessary to fulfill the purposes for which they are processed, and that the processing must be carried out in a manner that ensures its security, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage.

11. The Agreement also enshrines the commitment of the Parties, on one hand, to adopt appropriate technical or organizational measures that allow them to demonstrate that the processing of personal data is carried out in accordance with the principles regarding the processing of personal data listed; and, on the other hand, to provide information to any person whose data is subject to transfer, whenever they request access to it, as well as to proceed with its correction or deletion, except when such request may be refused under the respective domestic law of each of the Parties, and also to allow

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the access to administrative or judicial appeal mechanisms for any person whose data is subject to processing under the execution of this Agreement (paragraphs 3, 4, and 5 of Article 10).

12. The Agreement provides in its clauses, particularly in Articles 9 and 10, rules that, in abstract, ensure the protection of personal data subject to processing, as they comply with Law No. 59/2019, of August 8, which transposed Directive (EU) 2016/680 of the European Parliament and of the Council, of April 27, 2016.

13. Law No. 59/2019, of August 8, establishes rules regarding the protection of individuals concerning the processing of personal data by competent authorities for the purposes of preventing, detecting, investigating, or prosecuting criminal offenses, transposing Directive (EU) 2016/680 of the European Parliament and of the Council, of April 27, into domestic law, requires that the processing of personal data occurs in strict respect for the rights, freedoms, and guarantees of individuals (paragraph 1 of Article 4), being collected for specific, explicit, and legitimate purposes, adequate and limited to the minimum necessary for the pursuit of the purposes for which they are processed (subparagraphs b) and c) of paragraph 1 of Article 4).

14. However, the Agreement does not provide how personal data will be transmitted, how they will be stored, what level of protection is granted to them, who has access to them, and how, and what control is exercised over that access.

15. Moreover, the Agreement is silent regarding the security of data processing subject to international transfers, containing no provision that imposes on the Parties the adoption of appropriate technical and organizational measures, in accordance with the requirements of Article 31 of Law No. 59/2019, mentioned above.

16. For this reason, the CNPD is not authorized to comment on the adequacy and relevance of the processing of personal data resulting from the execution of this Agreement.

17. Considering that there will be transfers of personal data between both Contracting Parties, it is necessary to assess the adequacy of the level of protection of personal data in the Federative Republic of Brazil.

18. It should be noted that Brazil is not a Party to Convention No. 108 of the Council of Europe, relating to the protection of personal data, which is open for signature by States that are not Parties to the Council of Europe.

19. The transfer of personal data to a third country may be carried out based on an adequacy decision by the European Commission, as provided for in Article 38, paragraph 1 of Law No. 59/2019. In this case, the transfer is made to Brazil, which does not enjoy an adequacy decision.

1 Convention for the Protection of Individuals with regard to Automatic Processing of Personal Data, adopted on January 28, 1981, and entered into force in international law on October 1, 1985. It was approved for ratification by Resolution of the Assembly of the Republic No. 23/93, of July 9, and ratified

by Decree of the President of the Republic No. 21/93, of the same date.

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20. In the absence of an adequacy decision, transfers may only be made if the data controllers provide adequate guarantees and on the condition that the data subjects enjoy enforceable rights and have effective legal remedies available (subparagraph a) of paragraph 1 of Article 39 of the aforementioned Law), ensuring an adequate level of protection equivalent to that ensured in the European Union.

21. According to the jurisprudence of the Court of Justice of the European Union, it is not required that the third country ensures a level of protection identical to that guaranteed by the legal order of the European Union, but that it effectively ensures, by virtue of its domestic legislation or its international commitments, a level of protection of fundamental freedoms and rights that is substantially equivalent to that conferred within the Union (see Judgment Schrems, C-362/14, EU:C:2015:650, paragraphs 73 and 74).

22. Therefore, it is necessary to verify whether the Federative State of Brazil has an adequate legal framework for the transmission of data.

23. In this matter, it is necessary to consider Law 13.709, of August 14, 2018, the General Data Protection Law, which guarantees the privacy of personal data, even in cases where the data subject to processing originates from outside the national territory, provided that it results from communication or shared use of data with Brazilian data controllers, as long as the country of origin provides an adequate level of protection according to that Law (Article 4, Item IV).

24. However, Law 13.709 is not applicable to the processing of personal data carried out exclusively for public security, defense, and activities of investigation and repression of criminal offenses (cf. subparagraph d), of item III, of Article 4).

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26. Such legislation (Draft Bill of a General Law on Criminal Data Protection), however, does not exist in the Brazilian legal system.

27. In this regard, that is, in the absence of specific legislation that provides the parameters for the protection of personal data in the context of public security, criminal investigation, and repression of criminal offenses, it is up to doctrine and jurisprudence to resort to legal principles, which, by nature and definition, are vague and imprecise (cf. in this sense: <https://www.migalhas.com.br/coluna/dados-publicos/379087/protecao-de-dados-pessoais-na-seguranca-publica>).

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28. Thus, there is no applicable personal data protection legislation in the scope of this Agreement, so its text must contain all the norms that ensure that the level of protection of the data processed under this instrument is essentially equivalent to that guaranteed in the European Union.

29. As already mentioned, the Agreement merely reproduces some of the general principles applicable to data processing, as set out in Article 4 of Law No. 59/2019.

30. It is true that it refers to the terms of the applicable domestic law, but this proves to be insufficient, and therefore, the Agreement must reflect the application of these principles, enshrining specific norms suitable for the concrete context and taking into account the personal data processing in question. It is not intended here to regulate the processing of data in the country of origin, but the conditions under which they will be used in the country of destination.

31. Notwithstanding that we are dealing with a Cooperation Agreement between two States in the context of combating Crime, with the specificities arising therefrom, it is understood to alert to the need to foresee the obligation of the requested Party to notify the receiving Party of the data whenever they require rectification, must be deleted, or are subject to other restrictions, and consequently, the obligation of the receiving Party to comply with this notification must be foreseen.

32. It is also pointed out the need for the Agreement to include a norm regarding administrative and/or judicial remedies for data subjects, which must be guaranteed in relation to any personal data processing resulting from this Agreement, including the exercise of rights by the data subjects.

33. In summary, it is required both the presentation by the data controllers of adequate guarantees and the assurance that data subjects enjoy enforceable rights and have effective remedies available, ensuring an adequate level of protection equivalent to that guaranteed in the European Union.

III.

Conclusions

34. In accordance with the terms and grounds set forth, the CNPD recommends:

- a) The Agreement must contain norms that address the lack of data protection legislation in this domain, so that adequate guarantees of personal data protection provided by Portuguese Law and European Union Law are ensured;
- b) The explicit purposes of the personal data processing covered by the Agreement must be specified, and the categories of personal data associated with them must be indicated;

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- c) The Agreement must contain obligations regarding the security of personal data processing, and the means and effective conditions under which international data transfers occur must be better clarified;
- d) It must also contain norms to recognize and guarantee the exercise of the rights of data subjects, as well as the specific conditions under which such rights may be derogated;
- e) The Agreement must contain norms regarding administrative and/or judicial remedies for data subjects, which must be guaranteed in relation to any personal data processing resulting from this Agreement.

Lisbon, February 9, 2025

Paula Meira Lourenço (President)